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|            |                                                                                      | <p>Ratification is a means to hold an entity liable for the torts of its employees or members. (See gen. Baptist v. Robinson (2006) 143 Cal.App.4th 151, 169–170.)</p> <p>Demurrer is overruled as to the 7th cause of action for the same reasons as the 1st cause of action.</p> <p>RJN is unnecessary to the Court’s ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>102</b> | <p><b>MutouJackson vs. Fullerton Police Department</b></p> <p><b>25-01479364</b></p> | <p>Motion for Leave to First File Amended Complaint</p> <p>Plaintiff, Angelpharaoh MutouJackson (“Plaintiff”), in proper, moves for an order granting leave to file the attached First Amended Complaint.</p> <p>Defendant, City of Fullerton (the “City”), first contends that the motion should be denied as Plaintiff’s motion does not satisfy the requirements of the California Rules of Court and fails to comply with procedural requirements for seeking leave to file an amended complaint.</p> <p>A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).)</p> <p>A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)</p> <p>Here, while Plaintiff includes a copy of the proposed amended pleading, Plaintiff does not state what allegations in the original complaint are proposed to be deleted and what allegations are proposed to be added. Additionally, Plaintiff does not set forth when facts giving rise to the amended</p> |

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|  |  | <p>allegations were discovered and the reasons why the request for amendment was not made earlier.</p> <p>In addition, the City contends that even assuming the motion was procedurally proper, Plaintiff's allegations and proposed amended Complaint still fail to state a valid cause of action as Plaintiff has not shown timely presentation of his claim as required by the Government Tort Claims Act and fails to establish compliance with the statutory requirements for leave to present any late claims such that Plaintiff's claims are statutorily time-barred. The City further contends that amendment is highly prejudicial to the City and Plaintiff's Complaint alleges police misconduct, brutality, and excessive force, while his proposed amended Complaint, filed nearly a year later, adds four new causes of action, the Court has already set a trial date of November 9, 2026, that Plaintiff offers no adequate justification for his delay and seeks to amend based on facts he has purportedly known of for a long time.</p> <p>Plaintiff fails to cite to any authority to support the requested relief.</p> <p>Nevertheless, the court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Ibid.) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.)</p> <p>California courts generally exercise their discretion liberally to permit the amendment of pleadings at all stages of the proceeding in order to resolve cases on their merits. (IMO Development Corp. v. Dow Corning (1982) 135 Cal. App. 3d 451, 461.) This liberality only applies so long as there is no prejudice to the opposing party. (Higgins v. Del Faro (1981) 123 Cal. App. 3d 558, 564.) Leave to amend can be denied if the party seeking the amendment has been dilatory, and the</p> |
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|  |  | <p>delay has prejudiced the opposing party. (Hirsa v. Sup.Ct. (Vickers) (1981) 118 Cal. App. 3d 486, 490; Melican v. Regents of Univ. of Calif. (2007) 151 Cal. App. 4th 168, 176; Fisher v. Larsen (1982) 138 Cal. App. 3d 627, 649 [finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of discretion to deny leave to amend the complaint].)</p> <p>“[T]he trial court has wide discretion in determining whether to allow the amendment, but the appropriate exercise of that discretion requires the trial court to consider a number of factors: ‘including the conduct of the moving party and the belated presentation of the amendment. [Citation.] . . . The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court’s denial of the amendment. [Citation.]’ [Citation.] ‘The law is also clear that even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.’ [Citation.]” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 612-613.)</p> <p>“[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].)</p> <p>Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (Estate of Murphy v. Gulf Ins. Co. (1978) 82 Cal.App.3d 304, 311.) “ ‘Leave to amend may be denied if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]’ ” (Bidari v. Kelk (2023) 90 Cal.App.5th 1152, 1173.) “ ‘There is [also] a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to</p> |
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|  |  | <p>amend pleadings.’ [Citation.]” (Ibid.) “Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens.” (Miles v. City of L.A. (2020) 56 Cal.App.5th 728, 739.)</p> <p>Here, the original complaint was filed on May 2, 2025, and Plaintiff filed the instant motion on April 20, 2026. Plaintiff has not stated when the facts giving rise to this amended pleading were discovered and Plaintiff has not provided an explanation as to why the request for amendment was not made earlier, especially where, as here, Plaintiff provides that Plaintiff merely seeks to clarify factual allegations, add additional evidentiary support, and to ensure complete and accurate presentation of Plaintiff’s claims. Although the City argues amendment would be highly prejudicial, citing to the trial set on November 9, 2026, and that the City has reserved a hearing date of October 6, 2026, for its motion for summary judgment, there is no showing that the allegations that Plaintiff seek to add assert a new theory or facts which would require additional discovery or delaying trial.</p> <p>However, even if the motion complied with the procedural requirements, and the delay in seeking leave to amend was overlooked, the proposed First Amended Complaint fails to state a cause of action.</p> <p>“[I]f the proposed amendment fails to state a cause of action, it is proper to deny leave to amend.” (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1280.) “[T]he failure of a proposed amendment to state facts sufficient to constitute a cause or defense may support an order denying a motion to amend. [Citation.] That rule would find its most appropriate application, however, in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (Calif. Cas. Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281 disapproved of on other grounds by Kransco v. Am. Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)</p> <p>“A plaintiff suing the state or local public entity must allege facts demonstrating either compliance with the claims presentation requirement or an excuse for noncompliance as an essential element of the cause of action. [Citations.]” (Ovando v. County of Los Angeles (2008) 159 Cal.App.4th 42, 65.) “The plaintiff must prove compliance with the claim presentation requirement, or establish an excuse for noncompliance, to establish the defendant’s liability. [Citation.]” (Ibid.)</p> |
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|  |  | <p>“Suits for money or damages filed against a public entity are regulated by statutes contained in division 3.6 of the Government Code, commonly referred to as the Government Claims Act.” (DiCampli-Mintz v. County of Santa Clara (2012) 55 Cal.4th 983, 989.) “Section 905 requires that, subject to exceptions not present here, ‘all claims for money or damages against local public entities’ must be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910)’ of the Government Code.” (Id. at p. 990.) “ ‘ “Local public entity” includes a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State . . . .’ [Citation.]” (Ibid.)</p> <p>The Fourth District Court of Appeal in J.J. v. County of San Diego (2014) 223 Cal.App.4th 1214 explained the claims presentation requirement as follows:</p> <p>“The Government Claims Act (§ 810 et seq.) ‘establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)’ (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1237[13 Cal.Rptr.3d 534, 90 P.3d 116].) ‘[T]he claims presentation requirement applies to all forms of monetary demands, regardless of the theory of the action....’ [Citation.] ‘The policy underlying the claims presentation requirements is to afford prompt notice to public entities. This permits early investigation and evaluation of the claim and informed fiscal planning in light of prospective liabilities.’ (Ibid.)</p> <p>“Claims for personal injury must be presented not later than six months after the accrual of the cause of action.... (§ 911.2, subd. (a).) Timely claim presentation is not merely a procedural requirement but is a condition precedent to the claimant's ability to maintain an action against the public entity. (Shirk v. Vista Unified School Dist. (2007) 42 Cal.4th 201, 209[64 Cal.Rptr.3d 210, 164 P.3d 630].) ‘Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity.’ (Ibid.)</p> <p>“The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity. (City of San Jose v. Superior Court (1974) 12 Cal.3d 447, 454[115 Cal.Rptr. 797, 525 P.2d 701].) Moreover, because the purpose of the claims is not ‘to prevent surprise [but rather] is</p> |
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|            |                                                | <p>to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation ... [citations][,] ... [i]t is well-settled that claims statutes must be satisfied even in face of the public entity's actual knowledge of the circumstances surrounding the claim. Such knowledge—standing alone—constitutes neither substantial compliance nor basis for estoppel.’ (Id. at p. 455[115 Cal.Rptr. 797, 525 P.2d 701].)” (California Restaurant Management Systems v. City of San Diego (2011) 195 Cal.App.4th 1581, 1591–1592, 126 Cal.Rptr.3d 160.)</p> <p>(J.J. v. County of San Diego (2014) 223 Cal.App.4th 1214, 1219.)</p> <p>Here, the proposed First Amended Complaint seeks to asserts causes of action for negligence, battery, and violation of Civil Rights, and alleges that Plaintiff suffered physical, emotional, and property damages arising from Plaintiff arrest on April 22, 2025, when Plaintiff was a passenger on a public bus in Fullerton and requested assistance and asked the driver to contact law enforcement. Importantly, the proposed First Amended Complaint alleges that the subject incident occurred on or around April 22, 2025, and that Plaintiff filed a government claim on March 16, 2026. Thus, the allegations in the proposed First Amended Complaint indicate that Plaintiff failed to timely present a claim such that Plaintiff’s proposed claims would be barred. Additionally, there are no allegations that support an excuse for noncompliance. There is no indication that this deficiency could be cured by further amendment. Based on the foregoing, Plaintiff’s motion for leave to file a First Amended Complaint is DENIED.</p> <p>The Court GRANTS Defendant’s request for judicial notice as to Exhibits 1 through 3 pursuant to Evidence Code section 452(d) as court records but declines to take judicial notice of the truth of hearsay statements therein.</p> <p>The City to give notice.</p> |
| <b>103</b> | <b>Olive vs. Harcrow</b><br><b>24-01426576</b> | <p>1. Demurrer to First Amended Complaint</p> <p>2. Motion to Strike Portions Of First Amended Complaint</p> <p>The Court finds that, as alleged, the first cause of action for breach of fiduciary duty is alleged as a derivative cause of action. “A minority shareholder</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |